

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

To be completed by the City/Town or County Clerk:

Date Filed With Clerk: April 12, 2016 ^{MS}

Basic Fee:	Annual Fee	Prorated Fee
	\$ <u>1050.00</u>	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ _____	\$ _____
Total License Fee Collected	\$ <u>1050.00</u>	\$ _____
Publishing Fee Collected:	\$ <u>100.00</u>	\$ _____

Publishing Direct Billed: ☐

Advertising Dates (2 wks): April 22, 29, 2016

Hearing Date: May 9, 2016

LICENSE TERM: upon issuance

Through: March 31, 2017

A copy must be immediately forwarded to:
State of Wyoming Liquor Division
6601 Campstool Rd.
Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: WRCH Accomplish, LLC

Trade Name (dba): Accomplish Beer Co.

Premise Address: 115 W-15th St, Suite 1
City: Cheyenne State: Wyo. Zip: 82001 County: Laramie

Mailing Address: P.O. Box 2383
City: Livingston State: MT Zip: 59047

Business Telephone Number: (406) 551-4982

Fax Number: (866) 859-9084

E-Mail Address: forry.sandahl@rihandchophouse.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION ☒ LLC ☐ LLP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) RETAIL LIQUOR LICENSE ☐ ON-PREMISE ONLY (BAR) ☐ OFF-PREMISE ONLY (PACKAGE STORE) ☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE) ☒ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ BAR AND GRILL LIMITED RETAIL (CLUB) ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ DISTILLERY SATELLITE ☐ WINERY SATELLITE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT	To Assist the Liquor Division with scheduling inspections: WHEN DO YOU OPERATE? ☐ NON-OPERATIONAL/PARKED ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from _____ to _____ DAYS OF WEEK (e.g. Mon through Sat) Monday thru Sunday HOURS OF OPERATION (e.g. 10a - 2a) 11am until 10pm (approximately)
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1. DISPENSING ROOM DESCRIPTION WITH DIMENSIONS:

(a) Give a description with dimensions of the dispensing room and state where it is located within the building (e.g. 10 x 12 room in SE corner of building). Please provide a drawing of the establishment that includes the dispensing room: W.S. 12-4-102(a)(i)

The dispensing room is an approx. 10x15' Room located in middle of restaurant in Depot Bldg. in East Wyo.

(b) If Winery or Microbrewery, also list the manufacturing facility. (e.g. MFG: 10' X 12' room in SW portion of bldg.)

MFG: _____

(c) Do you have an additional dispensing room? YES ☒ NO ☐ If yes, provide description and location: _____

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:

Depot Center Addition: Lot 1, Block 1. Zoning appears to be CBD (Central Business District)

2. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103 (a) (iii)

(1) OWN the building in which sales room is located?

☐ YES (own)

(2) LEASE the building in which sales room is located?

☒ YES (lease)

(A) DATE lease expires April 14, 2017 located on page 2 paragraph 2.1 of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page 4 paragraph 6.1 of lease.

NOTE: Please submit a copy of the lease with the application. W.S. 12-2-103(a)(iii) requires the lease be valid THROUGH the TERM OF THE LICENSE and MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.

Approved as to
form only:

Date: 4/28/16

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith: _____
5. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(a) ☐ YES ☒ NO
If "YES", explain: _____
6. Is the applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is the applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE:

8. Have you submitted a valid food service permit? W.S. 12-4-407(a)/W.S. 12-4-413(a) ☐ YES ☐ NO

RESORT LICENSE:

(We have applied for food service.)

9. Does the resort complex:
- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended at least one million dollars (\$1,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO

MICROBREWERY LICENSE:

10. Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY ☐ WINERY
11. (a) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
(Requires additional licensing with the Liquor Division)
- (b) Do you distribute your products through an existing malt beverage wholesaler? W.S. 12-2-201(g)(i) (Requires additional licensing with the Liquor Division) ☐ YES ☐ NO

WINERY LICENSE:

12. Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY ☐ WINERY

LIMITED RETAIL (CLUB) LICENSE:

13. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

LIMITED RETAIL (CLUB) LICENSE:

14. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):
- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized

auxiliary?

☐ YES ☐ NO**LIMITED RETAIL (CLUB) LICENSE:****15. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

LIMITED RETAIL (CLUB) LICENSE:**16. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

17. (a) If applicant is filing as an Individual or Partnership: W. S. 12-4-102 (a) (ii) & (iii)

Each individual or partner must complete this section.

If the applicant is filing as a Club:

Each officer must complete this section.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

(b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102 (a) (iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete this section.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Rory Sandoval	3/19/1980	160 Granite Peak Drive Bozeman, MT 59718	(406) 577-6275	1	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

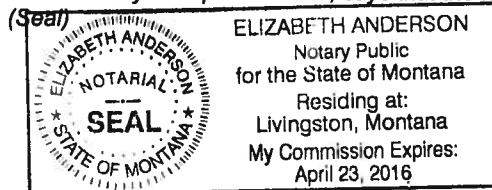
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Montana
 COUNTY OF Yank SS.

Before Me, Elizabeth Anderson, (specify)
 (Printed name of Notary or other officer authorized to administer oaths)

Park a Notary Public, Officer authorized to administer oaths in and for Montana
 County, State of Wyoming, personally appeared

Rory Sandoval name he/she being first duly sworn
 (Insert Names)
 by me upon his oath, says that the facts alleged in the foregoing instrument are true.



My Commission expires: April 23rd, 2016

1. [Signature] ✓
 2. _____
 3. _____
 4. _____

Witness my hand and official seal:

Elizabeth Anderson
 (Notary Public or other officer authorized to administer oaths)

Title _____

Dated: April 18th, 2016

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- ☐ Include a drawing of the dispensing room W.S. 12-5-201 (a).
- ☐ Attach any lease agreements W.S. 12-4-103 (a) (iii).
- ☐ Include a copy of the CURRENT food service permit for Restaurant or Bar & Grill Liquor License applicants W.S. 12-4-407 (a) or 12-4-413 (a).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		



PO Box 2383 Livingston, Montana 59047

April 18, 2016

Mayor Richard Kaysen
Members of the City Council
City of Cheyenne
2101 O'Neil Ave.
Cheyenne, WY 82001

Re: Wyoming's Rib & Chop House / Accomplice Beer Company

Dear Mayor Kaysen & Council:

Please accept the accompanying liquor license applications on behalf of **WRCH Accomplice, LLC** the entity formed to operate a microbrewery and limited service restaurant (aka "fast casual",) at the Historic Union Pacific Depot, at 115 W. 15th Street in downtown Cheyenne.

Since joining the Cheyenne hospitality community nearly two years ago with our latest *Rib & Chop House* location, we could not be happier by the reception granted us by the citizens of Cheyenne, nor more excited to test our pilot craft beer concept in your wonderful City!

Beginning just as soon as we can get City licensing & approvals, we intend to provide a limited menu of pork ribs, chicken wings and salads along with a variety of regional craft beers in a friendly setting that will have limited table service, but interesting technology that will combine for what we expect will be a new, engaging and enjoyable customer experience. Later this summer once equipment as been obtained & installed we will add a brewery operation to begin brewing and serving our own *Accomplice*-branded craft beers.

As you are well aware, there are some specific considerations and circumstances extant at the Depot location. We look forward to working closely with the City to resolve these issues and to launch our enterprise, as both a member of your business community and a tenant of the City-owned property.

We stand ready to answer any questions that the Mayor's office, Council or City staff may have and we appreciate your consideration of our applications.

Sincerely,

Burke Moran
President
Finally Restaurant Group

STATE OF WYOMING
Office of the Secretary of State

I, ED MURRAY, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

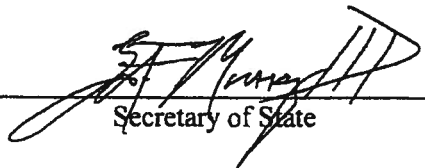
WRCH Accomplice, LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **9th** day of **December, 2015**.

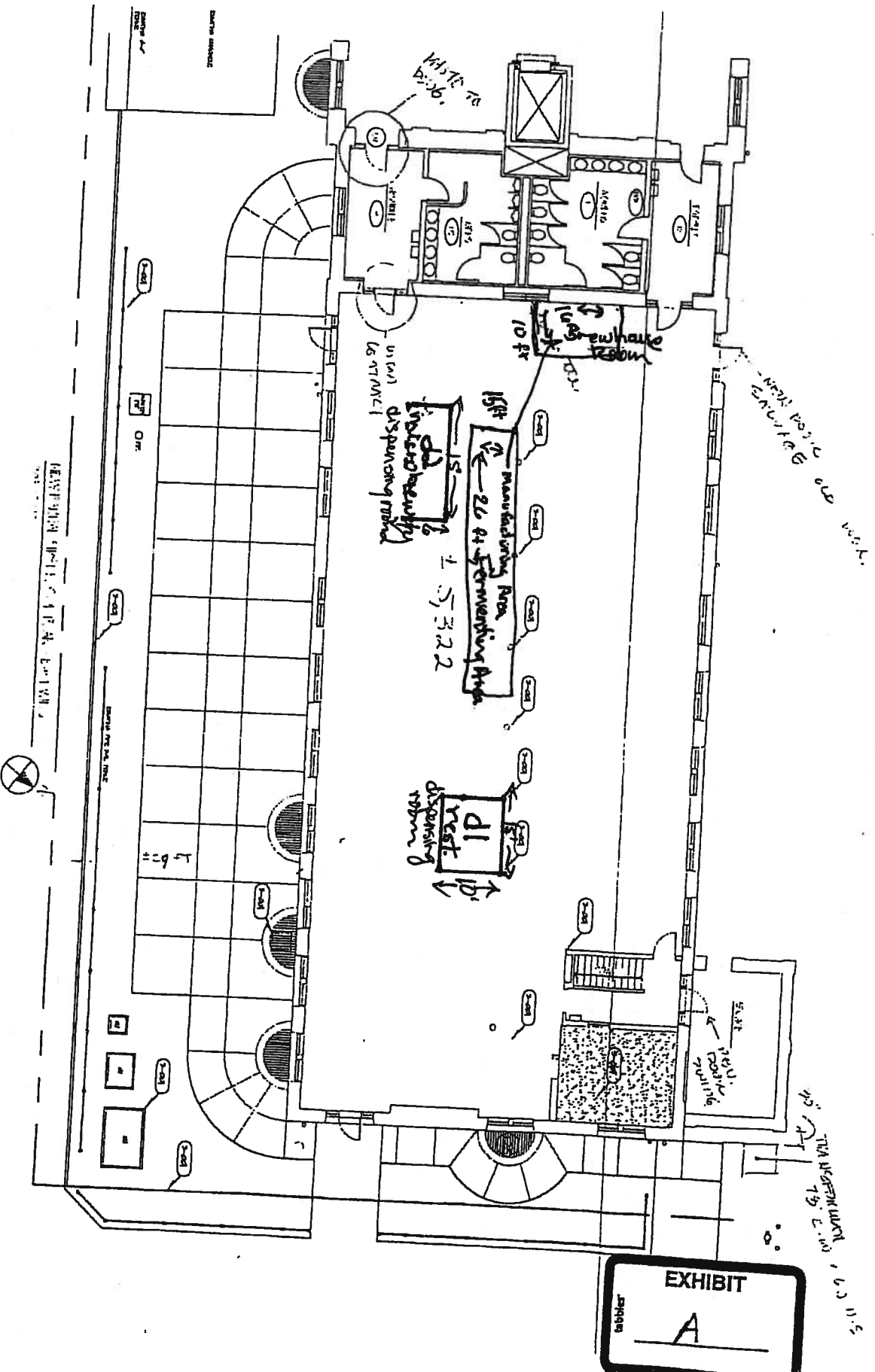


Filed Date: 12/09/2015


Secretary of State

By: Jeffrey O'Holleran

WRCH Accomplice, LLC



dl = 1st dispensing room

d2 = 2nd dispensing room

Remainder of Lease Agreement

is on file with the

City Clerk's Office.

LEASE AGREEMENT

This Lease Agreement, made and effective the 15th day of April, 2016 (the "Effective Date"), by and between the Cheyenne Depot Museum, Inc., a Wyoming non-profit corporation, (herein called "Lessor"), and WRCH Accomplice, LLC a Wyoming Limited Liability Company (herein called "Lessee").

WITNESSETH:

That in consideration of the mutual promises and covenants hereinafter set forth, Lessor and Lessee agrees as follows:

1. Premises

- 1.1 Lessor hereby leases, demises and lets to Lessee, and Lessee hereby leases and takes from Lessor, approximately 5,322 square feet located primarily on the first floor (the "Premises") of the building commonly known as the Historic Union Pacific Depot located in Cheyenne, Laramie County, Wyoming (the "Building") for the Term, subject to and upon the terms and provisions set forth herein and in consideration of the duties, covenants and obligations of the other hereunder. The Premises are more particularly shown on the floor plan attached hereto as Exhibit A. The Premises shall also include space on the south exterior and immediately adjacent to the Building approximately 29 feet by 106 feet amounting to 2,987 square feet and space on the north exterior and immediately adjacent to the Building approximately 25 feet by 106 feet amounting to 2,650 square feet. The Premises shall also include basement space of approximately 1,400 square feet solely in the east wing of the Building.
- 1.2 Lessor further grants to Lessee during the Term, and any renewals or extensions thereof, a non-exclusive license to use (a) the sidewalks, driveways and other exterior Common Areas, and (b) the lobbies, public corridors and other interior Common Areas, for the purpose of ingress and egress to and from the Building and the Premises and for any other purpose expressly provided in this Lease, in common with Lessor, other tenants of the Building, and their respective employees, contractors, guests, visitors and invitees. The term "Common Areas" as used herein shall mean all areas of the Building devoted to open corridors, lobbies, elevator foyers, restrooms, vending areas, driveways, streets, sidewalks, elevated walkways and other similar facilities which Lessor makes available for the common use or benefit of tenants generally and/or the public, but in any event shall consist of a common area in and around the eastern first floor restrooms. Lessor shall provide Lessee with access to the Premises 24 hours a day, seven days a week, including holidays.
- 1.3 The Premises includes the non-exclusive right to use approximately 32 City of Cheyenne owned parking spaces located in the lot immediately adjacent and to the north of the Building seven days per week. Additionally, 38 spaces shall be available in the West lot located immediately west of the Building for restaurant purposes from 5:00 p.m. to 2:00 a.m. seven days per week. It shall not be the

responsibility of the Lessor to manage these spaces in regard to keeping them vacant for Lessee.

- 1.4 Lessee acknowledges that this is a Sublease and that Lessor under this Lease is in turn a Lessee in a Lease dated January 3, 2003 (the "Master Lease"), with the owner of the Building, the City of Cheyenne (herein called "Owner").
- 1.5 In addition to Lessee's right to exclusive use of the Premises, Lessee shall also be entitled, from time to time, to use the space shown on Exhibit B as the "LOBBY" area. Lessee shall coordinate with Lessor as to time and dates for which it wishes to use said space (the "Additional Premises"), it being the parties' understanding that Lessor makes the Additional Premises available to other tenants and third parties from time to time and that Lessee's desired use of the Additional Premises will be subject to availability.
- 1.6 The parties acknowledge and agree that, as of the Effective Date, various furniture, fixtures and equipment from the prior tenant of the Premises remains on the Premises (the "Prior Tenant Equipment"). Lessor agrees to ensure that the Prior Tenant Equipment is removed as expeditiously as possible (but in no event later than May 16th, 2016 unless the parties agree otherwise) and in a manner that does not cause undue damage to the Premises. Lessee agrees to cooperate with Lessor as to the removal of the Prior Tenant Equipment.

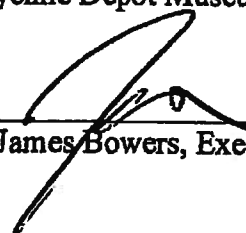
2. Term

- 2.1 The Term of this Lease ("Term") shall commence upon April 15, 2016 (the "Commencement Date") and shall continue for a term of One year (12 months) unless extended or earlier terminated as herein set forth.
- 2.2 Lessee is hereby granted the option to renew this lease for three (3) additional three (3) year terms provided that notice of exercise of said option is given by Lessee in writing to Lessor at least 90 days prior to the termination of the then-current term of this Lease (whether the initial Term or a three-year extended term). All provisions of this Lease applicable to the original term thereof shall apply with equal force to the extended terms.
- 2.3 At the conclusion of the third extended term of this Lease, the Lessee shall be granted the 'right of first refusal' on negotiating a new lease on the Premises. Lessee may give Lessor notice of its desire to negotiate a new lease at any time during the six-month period preceding the expiration of the third extended term of this Lease, in which case the parties shall enter into good faith negotiations on a new lease. If the parties are unable to reach agreement by a date that is three (3) months prior to the termination of the third extended term, Lessor may at that time negotiate with third parties as to a potential lease but shall not do so before such date.

IN WITNESS WHEREOF, the parties hereto have caused this Lease Agreement to be executed as of the day and year first above written.

LESSOR:

Cheyenne Depot Museum, Inc

By: 

James Bowers, Executive Director

LESSEE:

WRCH Accomplice, LLC

By: 

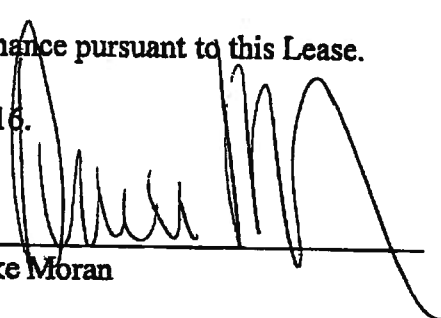
Name: RORY SANDOVAL

Title: OWNER

GUARANTY

I hereby guarantee Lessee's payment and performance pursuant to this Lease.

DATED this 18 day of April, 2016.


Burke Moran